CITY OF SAN JOSE – COMPLIANCE ORDER

Department of Planning, Building and Code Enforcement
200 E. Santa Clara Street, San Jose, CA 95113

Owner:	Kim Tran Le, as Trustee of the Kim Tran Le Living Trust
Mailing Address:	2725 Taffy Drive
	San Jose, CA 95148-2048
Occupant:	Lighthouse Food Rescue and Distribution
Case No:	202107919
Permit No:	N/A
Violation Address:	309 NORTH 17TH STREET
Inspection Date:	See page 15
Compliance Date:	See page 15

AN INSPECTION OF THE PROPERTY FOR WHICH YOU ARE RESPONSIBLE HAS IDENTIFIED THE FOLLOWING VIOLATIONS OF THE SAN JOSE MUNICIPAL CODE:

Code Section	Violations and Corrections Required
13.20.010	Display or storage of articles on public ways restricted - Conditions Except as otherwise provided in this title, and except as provided in Sections 6.54.010 through 6.54.200 of Title 6 relating to peddlers operating from a mobile unit, it shall be unlawful for any person to display, store, leave, place, or expose for sale, or cause to be displayed, stored, left, placed, or exposed for sale upon any sidewalk, gutter, alley, or street of the city any produce, merchandise, store boxes or store substance or material, objects or implements whatsoever of any class, kind, or character; nor shall any stand of any sort for the vending of any merchandise, produce or other property, or for transacting of any business whatsoever be allowed on any street or sidewalk within the city. Notwithstanding the foregoing, the council, by means of a resolution, may permit, in whole or in part, on city sidewalks such activity heretofore prohibited for a limited period of time for festivals, community activities and other occasions as the council may designate, provided that such permission shall not be given if the council finds the activity contemplated would unreasonably impede the free passage of traffic on and along such sidewalks or to and from the stores abutting such sidewalks. Any such action permitting such activity shall be subject to such terms and conditions as the council finds to be reasonably necessary for the preservation of the public peace, health and safety, and shall be further subject to such hold harmless insurance and other conditions and requirements as the council may find to be reasonably necessary under the circumstances. Any such action shall also require the permit holder to remove any articles and objects permitted to be placed on city sidewalks at the termination of the time for which such permit was given.

WARNING

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13.37.200 Unauthorized encroachments prohibited.

Encroachments placed, installed, constructed or maintained without authorization from the City are unlawful and the owner of the Encroachment shall either remove it at their sole expense or obtain authorization under this Chapter or another provision of this code. The Director shall send written notice notifying the owner of the unlawful Encroachment. If the owner does not remove the Encroachment and restore the Public Property or apply for authorization to maintain the Encroachment within thirty (30) days of the City's notification, the City shall have the right to immediately remove the illegal Encroachment and restore the Public Property, and the owner shall be liable for all of the City's direct and indirect costs and expenses.

20.10.030 Compliance required

No person shall use, allow or suffer the use of any land, building or structure except in strict compliance with the provisions of this Title 20 (of the San Jose Municipal Code), including the development and performance standards herein, and any Permit issued pursuant hereto. The temporary or transitory nature of a use does not exempt it from this requirement.

20.55.200 Allowed uses and permit requirements.

A. "Permitted" land uses are indicated by a "P" on Table 20-138.

B. "Conditional" uses are indicated by a "C" on Table 20-138. These uses may be allowed in such designated districts, but only upon issuance of and in compliance with a conditional use permit as set forth in Chapter 20.100.

C. "Conditional" uses requiring city council approval as the initial decision-making body are indicated by a "CC" on Table 20-138. These uses may be allowed in such designated districts, but only upon issuance of and in compliance with a conditional use permit approved by the city council as set forth in Chapter 20.100. Applications for these uses shall first be considered by the planning commission at a public hearing of the commission for the commission's report and recommendation on the application to the city council pursuant to the processes set forth in Chapter 20.100.

D. "Special" uses are indicated by an "S" on Table 20-138. These uses may be allowed in such designated districts, but only upon issuance of and in compliance with a special use permit as set forth in Chapter 20.100. These uses may be allowed in such designated districts, as a part of mixed use, but only upon issuance of and in compliance with a special use permit as set forth in Chapter 20.100.

E. "Administrative" uses are indicated by an "A" on Table 20-138. These uses may be allowed in such designated districts, but only upon issuance of and in compliance with an administrative permit as set forth in Chapter 20.100.

F. "Restricted" land uses are indicated by an "R" on Table 20-138. These uses may occur in such designated districts, but only upon issuance of and in full compliance with a valid and effective zoning code verification certificate as set forth in Chapter 20.100.

G. Land uses that are not permitted are indicated by a "-" on Table 20-138. Land uses not listed on Table 20-138 are not permitted.

H. When the right column of Table 20-138 includes a reference to a section number or a footnote, the regulations cited in the section number or footnote applies to the use. In addition, all uses are subject to any other applicable provision of this Title 20 and any other title of the San José Municipal Code.

20.55.203 Urban village and mixed use zoning district use regulations.

Table 20-138

Urban Village and Mixed Use Zoning District Use Regulations

Use	Zoning District						Notes & Sections
	UVC	UV	MUC	MUN	UR	TR	
Residential							
One-family dwelling	-	-	-	P	P	P	Note 6; Note 25
Two-family dwelling	-	-	-	P	P	P	Note 6; Note 25
Accessory dwelling unit	-	P	P	P	P	P	Part 4.5, Chapter 20.30
Mixed use development	-	P	P	P	P	P	Note 20; Note 25; Chapter 20.195
Mixed use development in Neighborhood Business District Overlay	-	-	P	P	-	-	Note 27
Multiple dwelling	-	P	P	P	P	P	Note 20; Note 25; Chapter 20.195
Streamlined Infill Housing Development	-	P^{GP}	P^{GP}	-	P^{GP}	P^{GP}	Note 27; Section 20.200.1225;

(outside of the Airport Influence Area)							Chapter 20.195, Part 4
Co-living community	-	S	C	C	S	S	Part 3.73, Chapter 20.80
Guesthouse	-	S	-	S	S	S	
Emergency residential shelter within Airport Influence Area	-	S	S	S	S	S	Section 20.80.500
Emergency residential shelter outside of Airport Influence Area (more than 150 beds)	-	S	S	S	S	S	Section 20.80.500
Emergency residential shelter outside of Airport Influence Area (150 beds or fewer)	-	P	P	P	P	P	Section 20.80.500; Chapter 20.195
Home Occupation	-	P	P	P	P	P	Part 9, Chapter 20.80
Hotel supportive housing	C	-	C	-	-	-	Note 17; Part 22, Chapter 20.80
Live/work uses	-	S	S	S	S	S	Section 20.80.740
Low barrier navigation center	-	P	P	P	P	P	Chapter 20.195
Permanent supportive housing	-	P	P	P	P	P	Note 20; Chapter 20.195
Residential accessory structures or buildings	-	P	P	P	P	P	Part 5, Chapter 20.30
Residential care facility for six or fewer persons	-	P	P	P	P	P	
Residential care facility for seven or more persons	-	C	C	C	C	C	

Residential service facility	-	P	P	P	P	P	
Single room occupancy, living unit	-	-	C	-	-	-	Note 25; Part 15, Chapter 20.80
General Retail							
Alcohol, off-sale - beer and/or wine only	C	C	C	C	C	C	Section 20.80.900
Alcohol, off-sale - full range of alcoholic beverages	C	C	C	C	C	C	Section 20.80.900
Alcohol, off-sale - as incidental to a winery, brewery, or distillery	A	A	A	A	A	A	Note 1; Part 5.75, Chapter 20.80
Food, beverages, and groceries	P	P	P	P	P	P	
Nursery, plant	P	P	P	P	P	P	Note 2
Outdoor vending	A	A	A	A	A	A	Part 10, Chapter 20.80
Outdoor vending, fresh fruits and vegetables	P	P	P	P	P	P	Part 10, Chapter 20.80
Pawnshop/broker	C	-	C	-	-	-	See Title 6
Retail art studio	P	P	P	P	P	P	Section 20.80.1175
Retail bakery	P	P	P	P	P	P	
Retail sales, goods, and merchandise	P	P	P	P	P	P	
Seasonal sales	P	P	P	P	P	P	Part 14, Chapter 20.80
Agriculture & Open Space							
Aquaculture, aquaponics, and hydroponics	S	S	S	S	S	S	
Certified farmers' market	S	S	S	S	S	S	Part 3.5, Chapter 20.80

Certified farmers' market, small	P	P	P	P	P	P	Part 3.5, Chapter 20.80
Community gardens	P	P	P	P	P	P	
Neighborhood agriculture	P	P	P	P	P	P	Note 16; Title 7
Education & Training							
Child Day Care Center located on an existing School Site or as an incident to a permitted on-site church/religious assembly use involving no building additions or changes to the site	P	P	P	P	P	P	
Child Day Care Center	S	S	S	S	S	S	
Child Day Care Center co-located with Multifamily housing development		P	P	P	P	P	Note 5
Instructional art studios	P	P	P	P	P	P	
Private instruction, personal enrichment	P	P	P	P	P	P	
School, elementary and secondary (public or private)	C	C	C	C	C	C	Note 13
School, driving (class C & M license)	P	P	P	P	P	P	Note 3
School, post secondary	P	P	P	P	P	P	
School, trade and vocational	P/S	P/S	P/S	P/S	P/S	P/S	Note 4 and Note 13
Entertainment and Recreation							

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Arcade, amusement game	P	P	P	P	P	P	
Health club, gymnasium	P	P	P	P	P	P	
Performing arts rehearsal space	P	P	P	P	P	P	
Poolroom/billiards establishment	P	P	P	P	P	P	
Private club or lodge	S	S	S	S	S	S	
Recreation, commercial indoor	P	P	P	P	P	P	
Recreation, commercial outdoor	-	S	-	-	-	-	
Stadium, 2,000 seats or fewer	C	C	-	-	-	-	
Stadium, more than 2,000 seats	CC	CC	-	-	-	-	Note 14 and Note 15
Theater, indoor	S	S	S	-	S	S	
Theater, outdoor	S	S	S	-	S	S	
Food Services							
Banquet facility	S	S	S	S	S	S	
Caterer	P	P	P	P	P	P	
Commercial kitchen	P	P	P	-	S	S	
Drinking establishments	S	S	S	-	S	S	
Drinking establishments interior to a full-service hotel or motel that includes 75 or more guest rooms	P	P	P	P	P	P	Section 20.80.475
Public eating establishments	P	P	P	P	P	P	
Public eating establishment or	P	P	P	P	P	P	Section 20.40.520

retail establishment with incidental outdoor dining							
Public eating establishment in conjunction with a winery, brewery, or distillery	P	P	P	P	P	P	Part 5.75, Chapter 20.80
Taproom or tasting room in conjunction with a winery, brewery, or distillery	A	A	A	A	A	A	Part 5.75, Chapter 20.80
Taproom or tasting room with off-sale of alcohol	A	A	A	A	A	A	Part 5.75, Chapter 20.80
General Services							
Bail Bonds Establishment	S	S	S	-	S	S	Note 11; Part 1.5, Chapter 20.80
Bed and breakfast inn	P	P	P	P	P	P	Part 2, Chapter 20.80
Dry cleaner	P	P	P	P	P	P	
Hotel or motel	P	P	P	P	P	P	
Single room occupancy (SRO) hotel	C	C	C	C	C	C	Part 15, Chapter 20.80
Laundromat	P	P	P	P	P	P	
Maintenance and repair, small household appliances	P	P	P	P	P	P	
Messenger services	P	P	P	P	P	P	
Mortuary and funeral services	P	P	P	P	P	P	
Personal services	P	P	P	P	P	P	Section 20.200.880
Bail Bonds Establishment	S	S	S	-	S	S	

Bed and breakfast inn	P	P	P	P	P	P	
Health and Veterinary Services							
Animal boarding, indoor	P	P	P	P	P	P	Note 7
Animal grooming	P	P	P	P	P	P	Note 7
Cannabis retail storefront	R	R	R	-	R	R	Part 9.75, Chapter 20.80
Emergency ambulance service	C	C	C	-	C	C	
Hospital/in-patient facility	C	C	C	-	C	C	
Medical cannabis collective dispensary site only	R	R	R	-	R	R	Part 9.75, Chapter 20.80
Medical cannabis dispensary	R	R	R	-	R	R	Part 9.75, Chapter 20.80
Office, medical	P	P	P	P	P	P	
Veterinary clinic	P	P	P	P	P	P	
Historic Reuse							
Historic landmark structure reuse	S	S	S	S	S	S	Part 8.5, Chapter 20.80
Industry and Manufacturing							
Laboratory, processing	P	P	P	-	-	-	
Manufacturing and assembly, light	P	P	P	-	-	-	Note 22
Office, research and development	P	P	P	-	S	S	Note 21
Offices and Financial Services							
Automatic teller machine	P	P	P	P	P	P	Section 20.80.200
Business support	P	P	P	P	P	P	
Office, general business	P	P	P	P	P	P	

Retail bank / Financial services	P	P	P	P	P	P	
Public, Quasi-Public and Assembly Uses							
Cemetery	C	C	C	C	C	C	
Church/religious assembly	S	S	S	S	S	S	
Museums, libraries, parks, playgrounds, or community centers (publicly operated)	P	P	P	P	P	P	
Museums, libraries, parks, playgrounds, or community centers (privately operated)	S	S	S	S	S	S	
Recycling Uses							
Reverse vending machine	A	A	A	A	A	A	Part 13, Chapter 20.80
Small collection facility	A	A	A	A	A	A	Part 13, Chapter 20.80
Transportation and Utilities							
Community television antenna systems	C	C	C	C	C	C	
Off-site, alternating use and alternative parking arrangements	S	S	S		S	S	Section 20.90.200
Parking establishment, off-street	S	-	S	-	-	-	Note 23
Television, radio studios without antenna/dishes	C	C	C	-	-	-	
Utility facilities, excluding corporation yards,	C	C	-	-	-	-	

storage or repair yards and warehouses							
Utility facilities including corporation yards, storage or repair yards and warehouses	-	-	-	-	-	-	
Wireless communication antenna	C	C	C	C	C	C	Note 18; Sections 20.100.1300, 20.80.1915
Wireless communication antenna, slimline monopole	S	S	S	S	S	S	Note 19; Sections 20.80.1900, 20.80.1915
Wireless communication antenna, building mounted	P	P	P	P	P	P	Note 19; Sections 20.80.1910, 20.80.1915
Utilities, Electrical Power Generation							
Co-generation facility	S	S	S	S	S	S	
Fuel cells	P	P	P	P	P	P	
Private electrical power generation facility	C	C	C	C	C	C	
Solar photovoltaic system	P	P	P	P	P	P	Section 20.100.610 C.7.
Stand-by/backup facilities that do not exceed noise or air standards	A	A	A	A	A	A	
Stand-by/backup facilities that do exceed noise or air standards	C	C	C	-	-	-	
Temporary stand-by/backup	P	P	P	P	P	P	
Vehicle Related Uses							

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Sale or leasing of vehicles, showroom only	P	P	P	-	-	-	Note 24
Sale, vehicle parts	S	S	S	-	S	S	Note 9
For all other vehicle related uses refer to the General Use Regulations as described in section 20.55.201 (K)							

Notes:

1. Alcohol, off-sales are limited to products manufactured on-site for wineries, breweries, or distilleries.
2. Landscaping materials, such as rock, mulch, and sand are limited to prepackaged sales.
3. Classroom use only, no driving courses or on-site storage of vehicles permitted in UVC, UV, MUC, MUN, UR or TR Zoning Districts.
4. Indoor uses related to trade or vocational schools are Permitted, any outdoor uses will require a Special Use Permit.
5. Child Day Care Centers are considered a permitted use when co-located as part of a multi-family housing development that is equal or less in square footage when compared to the multi-family development.
6. One-family dwellings or two-family dwellings are allowed as part of a larger development which meets the minimum density requirement in the UR and TR zoning districts.
7. Except as an incidental use to neighborhood agriculture, all uses involving any type of care for animals, including but not limited to grooming, boarding, medical care, must be conducted wholly inside a building.
8. Incidental repair includes non-invasive engine service, maintenance, and repair, including but not limited to, air conditioning service, fuel system service, electrical service, coolant system service, tune-up, fluid exchanges, steering and suspension system service, brake system service, transmission adjustment and service, lube, oil change, smog check, diagnostics and vehicle inspections, stock catalytic converters and manifolds, as well as tires, batteries and accessories installation. Does not allow body repair, welding, vehicle restorations, other types of exhaust system repair, the removal of cylinder heads, engines, transmissions/transfer cases and differentials, or painting.
9. No outdoor sales areas or dismantling allowed.
10. All vehicle-related repair, service, and accessory or other installation shall be conducted within a fully enclosed building.
11. Bail bond establishments shall not be located and are prohibited uses on the ground floors of structures located within the main jail area, as that area is defined in Section 20.80.070 of Chapter 20.80 of this Title. Bail bond establishments are allowed as shown on Table 20-138 on other, above-ground floors of structures. All bail bond

establishments shall meet all distance requirements specified in Section 20.80.075 of Chapter 20.80 of this Title.

12. Charging stations that are incidental to a separate primary use that do not impact on-site or off-site vehicular circulation, and that serve patrons of the primary use on-site are permitted in all commercial zoning districts. Hydrogen-fueling stations shall be permitted pursuant to Government Code Section 65850.7.
13. Public schools are subject to the regulations of this Title, subject to the provisions of California Government Code Section 53094 for classroom facilities.
14. Primary uses include sporting events, assembly venues, concerts, and entertainment events of similar character and intensity. Incidental support uses include offices, locker rooms, retail, public eating establishments, drinking establishments, outdoor vending facilities, and other commercial uses of similar character and intensity.
15. Use permit applications for stadiums that consist of more than 2,000 seats and that are in airport influence areas shall be referred to the Santa Clara Airport Land Use Commission prior to approval by the City.
16. Neighborhood agriculture in conformance with this Title is a permitted use that may operate on a site without a permanent building on that site.
17. Hotel supportive housing may be permitted only with a Conditional Use Permit pursuant to Part 22 of Chapter 20.80 and only until December 31, 2026.
18. Certain modifications of existing wireless facilities may be permitted with an Administrative Permit in accordance with Section 20.80.1915 of Chapter 20.80.
19. Conditional Use Permit required outside of Urban Villages; Special Use Permit in Urban Villages.
20. Permanent supportive housing is a permitted use as mixed use or residential-only development. For information regarding the Ministerial Approval process, refer to Chapter 20.195 for more information.
21. Research and Development is allowed through a Special Use Permit in TR and UR if the use on site does not involve activity that would create noxious sounds, smells, or vibrations.
22. For the purposes of Chapter 20.55, Food and Beverage manufacturing is considered to be permitted under the Manufacturing and Assembly, light use, if it meets all of the following criteria:
    a. The use must include a retail space which is accessible from and adjacent to the street and open to the public during regular business hours.
    b. Odors produced on-site shall not have a material negative effect on other businesses or properties in the area.
23. Surface parking which does not serve a use contained on the same site or under the same Development Permit is not permitted. Standalone parking structures are allowed under the following conditions:

a. Parking structures shall comply with the Citywide Design Standards and Guidelines.
b. In addition, the parking facility must meet one of the following criteria:
   i. The parking facility shall be designed as a structured aboveground parking facility with ground floor commercial spaces, which are located along public rights-of-way or public open spaces, and which comply with Citywide Design Standards and Guidelines for ground floor commercial spaces.
   ii. The parking facility shall be designed as an underground parking facility with a POPOS at grade level, which is open to the public 24 hours a day, and which complies with the Citywide Design Standards and Guidelines.

24. In UVC and MUC, sale and leasing of vehicles is permitted in the form of an interior showroom only with no on-site storage of vehicles other than display models in the showroom.
25. May be used as Transitional Housing.
26. 100% deed-restricted affordable housing is a permitted use for residential housing type that meet minimum density requirement in the UR and TR zoning districts, and commercial space requirements shall not apply; subject to conformance with General Plan policies and state law mandates. Refer to Chapter 20.195 for information regarding the ministerial approval process.
27. The Neighborhood Business District Overlay includes North 13th Street/Luna Park, Japantown (Taylor Street only), and the Willow Glen Neighborhood Business District.
28. Ministerial streamlined review process for housing development projects. See Section 20.200.1225 and Chapter 20.195 for projects that qualify.

Violations

1. The property is being used as a "social service agency" as defined at Sections 20.200.1162 and 20.200.1163, a social service expressly including "a food and goods distribution facility." is not listed on Table 20-138 for the MUC district, and under Section 20.55.203(G) land uses not listed on Table 20-138 are not permitted.
2. Food, goods, and related materials, together with canopies and associated setup, are being placed, stored, and left upon the public sidewalk adjoining the property, and business of the food bank is being transacted from the sidewalk.
3. Canopies have been erected and are being maintained on the public sidewalk without an encroachment permit or other authorization from the City. The canopies are a "Minor Encroachment" as defined at Section 13.37.110(F), being temporary, non-structural improvements readily removable with minimal alteration or damage to the adjoining public property.

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Department of Planning, Building and Code Enforcement
200 E. Santa Clara Street, San Jose, CA 95113

Corrections Required

1. Within ten (10) days from the date of this notice, remove all food, goods, boxes, tables, stands, and other articles, objects, or things from the public street and public sidewalk, and remove all canopies from the public right-of-way and restore the public property to its pre-encroachment condition, so as to eliminate the obstruction, code violation, or public nuisance. Do not place, store, or leave any article, object, or thing upon the public sidewalk, gutter, alley, or street.
2. Within sixty (60) days from the date of this notice, cease all unpermitted or non-compliant uses of the property, buildings, or structures. Discontinue operation of the food bank / social service agency use at this location. Ensure all land use, including temporary uses, strictly complies with Title 20 zoning requirements and any issued permits.

- *Additional property and permit information may be found on the City's website at www.sjpermits.org/permits/ or by calling our information hotline at (408) 535-3555.*

If compliance has not been achieved by the date as reflected in this compliance order, the City of San Jose will assess a re-inspection fee of $274.00 for each re-inspection.

September 25, 2026	Shaun Bruckner 188E	408-535-6813
Date of Notice	Code Enforcement Inspector	Phone #

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Department of Planning, Building and Code Enforcement
200 E. Santa Clara Street, San Jose, CA 95113

The Department of Planning, Building and Code Enforcement (Code Enforcement) has issued a Compliance Order (Compliance Order) alleging that the subject property is in violation with the San Jose Municipal Code. Failure to correct all violations listed in the order, before the compliance date may result in administrative penalties up to $20,000 per day for each violation until compliance is achieved as well as the assessment of all administrative costs. This action is in addition to all other legal remedies, criminal or civil, which may be pursued by the city in response to any violation.

If you believe that your property is not in violation with the San Jose Municipal Code and you dispute the basis for Compliance Order, you MUST file a request for a Director's hearing within fourteen (14) calendar days of the date of the Compliance Order was mailed or personally delivered to the responsible person(s).

Your request for hearing must be mailed or personally delivered to:

City of San Jose
Code Enforcement Division
200 East Santa Clara Street 4th fl.
San Jose Ca, 95113-1905

Your request for an appeal must be received by the City within the timeline above.
If you do not file a request for hearing, the Compliance Order will become final. If a timely appeal is filed, then a hearing will be scheduled. You will receive at least seven (7) days notice that a hearing on your appeal will take place.
The Director's hearing is informal and provides you with an opportunity to present your evidence and testimony in dispute of the Compliance Order. After the close of the hearing, the Director will make a decision. The written decision will be mailed to the person subject to the Compliance Order. If you dispute the Director's decision, you may appeal to the San Jose Appeals Hearing Board within ten (10) days of the date of the written decision of the Director. That Board is described at:
https://www.sanjoseca.gov/your-government/departments-offices/planning-building-code-enforcement/code-enforcement/appeals-hearing-board
Your rights when a Compliance Order is issued are contained in the San Jose Municipal Code Section 1.14.030 and the following sections. It is available on line at www.sanjoseca.gov by clicking on the link at the right of the page, "Municipal Code."

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